

Prema Yadav v. State of U.P.

Allahabad High Court (Lucknow Bench) · Division Bench · 1 March 2024 · 2024:AHC-LKO:18900-DB · WRIT - C No. - 2097 of 2024 · **Writ disposed of with liberty to apply to the CGRF under Electricity Supply Code clause 7.10(3), including a stay application to be considered expeditiously.**

HEADNOTE

A writ of certiorari to quash a 31 January 2024 electricity order was disposed of because the consumer had an alternative remedy of applying under Section 7.10 sub-clause (3) of the Electricity Supply Code to the Consumer Redressal Forum, with a stay application which that Forum would consider expeditiously.

FACTUAL SUMMARY

Prema Yadav petitioned the Lucknow Bench of the Allahabad High Court for a writ of certiorari to quash an order dated 31 January 2024 passed by respondent no. 3, an officer under the State Energy Department. Counsel for respondents 2 to 4, the distribution-licensee interests, submitted that the petitioner had an alternative remedy of applying under Section 7.10 sub-clause (3) of the Electricity Supply Code to the Consumer Redressal Forum, together with a stay application, which the Forum would consider expeditiously.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

alternative remedy before CGRF

HOLDING

A writ of certiorari against an electricity order dated 31.01.2024 is not entertained where the consumer has an alternative remedy of filing an application under Section 7.10 sub-clause (3) of the Electricity Supply Code before the Consumer Redressal Forum, together with a stay application which the Forum shall consider expeditiously; the petition is disposed of with liberty to avail that remedy. ¶ 3-4

FLAG Court cited 'Section 7.10 sub-clause (3)' of the Electricity Supply Code (catalog analogue UP-2005::7.10(iii)).

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The Division Bench accepted that certiorari against the 31 January 2024 order must yield to an application and stay under clause 7.10(3) before the Consumer Redressal Forum, and disposed of the writ with liberty to that forum. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED ORDER DATED 31.01.2024

The writ was disposed of on alternative remedy without examining the order under challenge. ¶ 2-4